

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS
STATE OF COLORADO

Case No. 2012-005883

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE
ADDICTION COUNSELING IN THE STATE OF COLORADO OF SARAH
RAFFERTY, LICENSE NO. _____

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Addiction
Counselor Examiners ("Board") and Sarah Rafferty ("Applicant") as follows:

1. The Board has jurisdiction over the person of Applicant and the subject
matter of this Stipulation and Final Agency Order ("Order").

2. Applicant applied for licensure as a Licensed Addiction Counselor on or
about April 24, 2012 ("Application").

3. Applicant's Application was denied by the Board on or about July 17,
2012.

4. Applicant was notified by letter dated July 19, 2012, that the Board
had denied her Application.

5. On or about August 23, 2012, Applicant requested a hearing regarding
the denial of her Application.

6. It is the intent of the parties and purpose of this Order to provide for
settlement of all matters arising out of case number 2012-005883. This Order is a
full and final resolution of Applicant's Application for licensure. This Order does
not resolve any other cases, complaints, or matters, known or unknown to the Board
or Applicant, as of the effective date of this Order.

7. Applicant admits the following:

a. On her Application, Applicant answered "yes" to question #6,
which asks, "Have you ever received a deferred judgment or been convicted of
or pled *nolo contendere* to a violation of any federal, state, or local law

relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol?"

b. On December 4, 2009, Applicant was convicted of one count of Driving While Ability Impaired.

8. By virtue of the facts admitted in paragraph 7 above, Applicant admits and the Board finds the above conduct is a violation of § 12-43-222(1)(e), C.R.S.

9. The Board is authorized by § 12-43-804(3)(c), C.R.S. to grant Applicant licensure. The Board is authorized to grant a probationary license, subject to conditions, pursuant to § 12-43-224(3)(c), C.R.S. The Board hereby grants a probationary license to Applicant subject to the terms and conditions outlined below. Applicant consents to the following limitations to her license as provided by § 24-4-104(11), C.R.S. Applicant acknowledges that by consenting to licensure with conditions in lieu of a formal hearing, Applicant waives all remedies outlined in §§ 12-43-212(2) and 24-4-104(9), C.R.S.

PROBATION

10. Applicant's license to practice addiction counseling in the State of Colorado is hereby placed on probation for one (1) year commencing from the effective date of this Order. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order. If at any time Applicant is not in compliance with the terms and restrictions of probation, Applicant shall cease the practice of addiction counseling.

11. The period of probation is tolled during any time that Applicant is not practicing as a licensed addiction counselor in the State of Colorado, and such period of probation shall resume at such time as Applicant resumes practicing as a licensed addiction counselor in the State of Colorado in accordance with this Order.

12. Applicant shall report to the Board if she discontinues the practice of addiction counseling, and Applicant shall notify the Board upon resuming the practice of addiction counseling.

13. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a licensed addiction counselor in the State of Colorado and is in full compliance with all terms of this Order.

14. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and

Applicant is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

15. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug, controlled substance, or alcoholic beverage only as directed by such authorized person and only for the condition identified by such authorized person.

16. Applicant shall provide full, complete, and accurate disclosure of any drug regimen prescribed by an authorized person to the Board approved independent agency. The independent agency's approval for the use of the drug regimen shall pertain only to the particular medication, indication, dosage and amount of refills as disclosed by Applicant.

AUTHORIZED USE OF ADDICTIVE SUBSTANCES

17. Except in the case of a bona-fide medical emergency, Applicant shall not use a habit-forming drug or controlled substance unless prescribed by an authorized person.

18. In the case of a bona-fide medical emergency, Applicant may use the habit-forming drug or controlled substance as prescribed by the authorized person, but must notify the independent agency within 72 hours of use and/or prior to resuming practice and provide documentation to the Board from the authorized person who prescribed the medication stating the medical need.

TERMS AND CONDITIONS

19. Applicant will strictly observe the prohibitions set forth in the Mental Health Practice Act, § 12-43-101, *et seq.*, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with generally accepted standards of practice.

20. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing any mental health services, unless such supervision or consultation is monitored in accordance with this Order.

21. All expenses incurred or associated with any requirements necessary to fulfill the terms of this Order shall be the sole responsibility of Applicant and not the Board.

22. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of her change of address within 30 days of the effective date of such change.

23. Applicant is fully aware of and understands the right to have a formal disciplinary hearing, pursuant to §§ 12-43-212 and 24-4-104(9), C.R.S., and hereby waives this right. Applicant also acknowledges this waiver constitutes a waiver of all rights to appeal in this matter.

24. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel, and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

25. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of § 12-43-212(3), C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §§ 12-43-224 and 24-4-104(9), C.R.S.

26. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

27. Applicant shall obey all state and federal laws while this Order is in effect.

28. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises express or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

29. This Order shall become effective when accepted and signed on behalf of the Board.

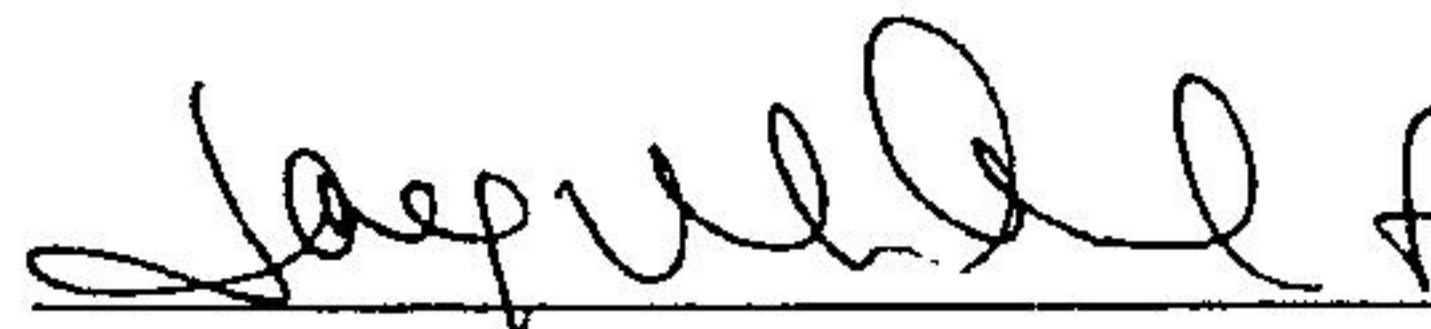
30. This Order shall be admissible as evidence at any hearing held before the Board.

31. This Order shall be a public record in the custody of the Board.

APPLICANT

STATE BOARD OF ADDICTION
COUNSELOR EXAMINERS


Sarah Rafferty

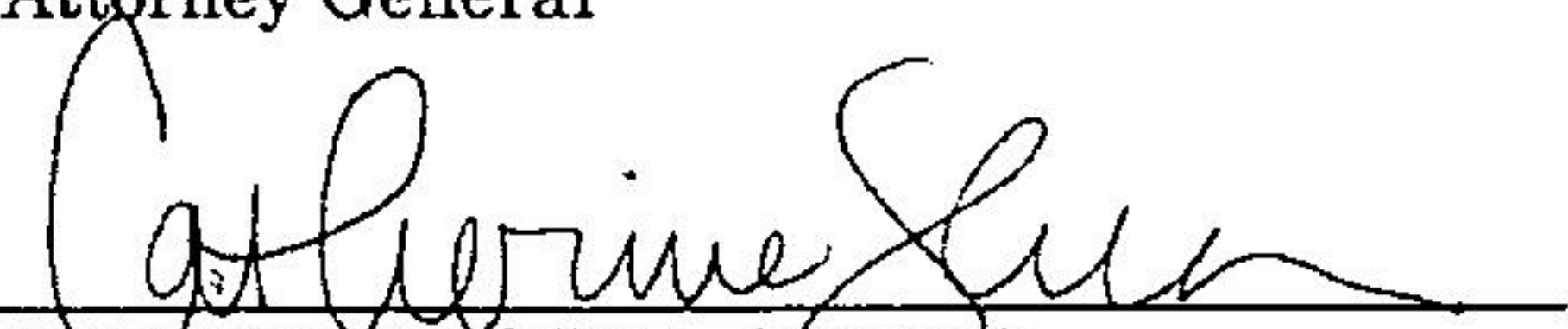
 for Ronne
Ronne M. Hines
Program Director

Dated: 10/29/12

Effective Date: This 26th day of
November, 2012.

APPROVED AS TO FORM:

JOHN W. SUTHERS
Attorney General


CATHERINE SHEA, #36658*
Assistant Attorney General
Business & Licensing Section

Attorneys for the State Board of Addiction
Counselor Examiners

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